

FEDERAL COURTS — SPRING 2026
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FINAL EXAMINATION

This exam is four pages long (including this one). Please check to see that you have all four pages.

GENERAL INSTRUCTIONS:

- As discussed in the syllabus and in class, you may make use of any written or printed material you bring into the exam room with you, including (without limitation), your casebook, outlines, slides, commercial hornbooks, etc. You **may not** access new material (printed or electronic) after having started the exam, and you may not access any material on the internet or make use of an AI/LLM in your answer. **By turning in the exam, you certify your compliance with these instructions and that all the work on the exam is your own.**
- You should not identify yourself in any way in your exam answers, and you should not talk to me about the exam prior to receipt of your grade. Any questions or concerns during the exam should be directed to the proctors, who can contact me if necessary. You should not discuss the exam with others prior to receiving your grades.

CONTENTS:

- You have **three hours** to complete this exam, which consists of a single fact pattern giving rise to three questions. For ease of writing and grading, I have split the exam into three questions on the electronic testing software. At the top of each question, I have indicated the question's relative value (out of 100).
- There is **no maximum word count**. As discussed in class, identifying the issues and applying the correct doctrinal tests will earn you approximately ~60 to ~70 percent of the available points, with the remaining points dedicated to depth and sophistication of analysis.
- My rubric only assigns points to material we covered in class. There is no need to analyze the substantive merits of underlying claims (*e.g.*, First Amendment) unless those claims are themselves a "Fed Courts issue" we covered. **Read the calls of the questions carefully; I am not necessarily asking about every potential "Fed Courts issue" raised by the facts.**
- You should engage seriously with the relevant doctrine and the strongest arguments on each side, before coming to a conclusion. Case citations by name are helpful and single names (*e.g.*, *Plaut*) are sufficient.
- Organize your answers clearly. If there are subquestions, answer them under separate headings. You are encouraged to use sub(-sub, etc.)-headings as appropriate.

Good luck! I'm rooting for you!

THE CAMPBELL WELLNESS PROTECTION ACT

The following facts pertain to all three questions. These facts take place in the fictional state of Campbell, which has a single United States District Court, which is subject to appellate review in the newly created Thirteenth Circuit Court of Appeals. The Thirteenth Circuit has no binding precedent other than Supreme Court caselaw.

The Statute

The Campbell State Legislature recently enacted, and Governor Leonard signed, the Campbell Wellness Protection Act (CWPA). Its relevant provisions are as follows:

§ 1 — Licensing Requirement. No person may offer, provide, or advertise “therapeutic coaching services” for compensation without first obtaining a license from the Campbell Board of Wellness Professionals (CBWP). “Therapeutic coaching services” means any service in which a practitioner purports to address, treat, improve, or remediate a client’s mental, emotional, behavioral, or psychological state through conversation, instruction, or directed exercises.

§ 2 — Mandatory Disclosure. Practitioners licensed under § 1 must include the following statement in all client contracts and public-facing advertising: “I am not a licensed mental health professional. My services are not a substitute for therapy, psychiatry, or medical treatment. Scientific evidence for the effectiveness of coaching in treating mental health conditions is limited and uncertain.”

§ 3 — Prohibited Practices. Practitioners licensed under § 1 may not (a) claim to treat or cure any clinically diagnosed condition, or (b) employ any technique designated by the CBWP as “evidence-free.” [The CBWP has thus far designated ‘past-life regression therapy’ and ‘quantum healing’ as “evidence-free” techniques.]

§ 4 — Enforcement. The Director of the CBWP [appointed by the Governor from a slate of candidates proposed by the private Campbell Association of Wellness Professionals] may issue cease-and-desist orders, impose civil fines of up to \$10,000 per violation, and initiate license-revocation proceedings before a CBWP hearing officer. Any such adverse action is appealable in Campbell Superior Court, subject to a deferential standard to be identified by the courts of Campbell.

Maxine Hill

Maxine Hill has operated “Hilltop Healing” in Campbell City for nine years, offering what she calls “integrative life transformation sessions”—conversation-based methods she believes are grounded in her sincere Christian faith concerning the inseparability of spiritual and psychological well-being. She charges \$150 per session and has never held any mental-health-related license. Hill declined to apply for a CWPA license, contending the licensing requirement and the mandatory disclosure (which she considers false as applied to her practice) violate her rights under the First Amendment, as applied to Campbell via the Fourteenth Amendment.

In January, CBWP Director Elizabeth Lime issued Hill a cease-and-desist order. Hill immediately sought review of the order in Campbell Superior Court, seeking a preliminary and permanent injunction, on the basis of four claims: (1) the CWPA violates the Free Speech Clause of the First Amendment; (2) the CWPA violates the Free Exercise Clause of the First Amendment; (3) the CWPA violates Article VII, § 22 of the Campbell State Constitution, which prohibits “laws prohibiting freedom of thought, speech, or spiritual

expression”; and (4) the CWPA violates Article V, § 1 of the Campbell Constitution, which guarantees due process of law.

The Campbell Superior Court denied her motion for a preliminary injunction, which she appealed as of right (Campbell’s rules regarding interlocutory appeals mirror the federal ones). The Campbell Supreme Court (SCOCAM) issued a unanimous opinion affirming the Superior Court decision, finding that Hill was not likely to succeed on the merits. As to the state constitutional claims, SCOCAM applied its own established doctrine and did not cite any federal case. On the federal claims, SCOCAM concluded (1) that, “even if strict scrutiny applies,” the CWPA’s licensure and disclosure provisions would “easily” satisfy the test;¹ and (2) that although Hill briefed and argued the Free Exercise issue, it was not listed as one of the “Issues Presented for Review” in her opening brief and was therefore waived under SCOCAM’s Rules of Appellate Practice. In a concurring opinion, Justice Crisko criticized the Court for relying on an “arbitrary and arcane procedural technicality to dispose of a claim that was fully briefed,” and stated that he would have reached the merits.

On remand, the Campbell Superior Court *sua sponte* entered a final judgment against Hill, stating that under Campbell precedent, SCOCAM’s decision definitively resolved the case. Hill did not appeal. As a result, Hill has ceased her practice.

The Campbell Coaching Collective

The Campbell Coaching Collective (CCC) is a trade association of 310 Campbell-based life coaches and wellness advisors. Its members include:

- (a) 70 members who have not received cease-and-desist orders but have stopped advertising their services and turned away new clients out of well-founded concern that they will be targeted;
- (b) 240 members whose services fall outside of the CWPA’s definition of therapeutic coaching services.

In March, CCC filed a complaint in the United States District Court for the District of Campbell, naming Director Lime as a defendant in her official capacity. CCC’s complaint sought (1) a declaration that the CWPA violates the First and Fourteenth Amendments on its face, and (2) a permanent injunction barring enforcement. CCC invoked 28 U.S.C. § 1331 as the basis for federal subject-matter jurisdiction, and 42 U.S.C. § 1983 as providing a cause of action. Lime moved to dismiss; Judge Jeremiah Williams deferred decision on the motion and set a hearing on CCC’s motion for a preliminary injunction.

The preliminary injunction hearing was held on April 3, 2026. As of today’s date, Judge Williams has not yet issued a ruling on either the MTD or the PI motion. Two weeks after the hearing, however, the CBWP issued cease-and-desist letters to twenty of the seventy CCC members who had previously self-censored. Additionally, CBWP initiated license-revocation proceedings against ten other members, which are now pending before CBWP hearing officers. CCC amended its complaint to reflect these facts and to request equitable restitution for the expenses its members have incurred to defend themselves.

Lime has now renewed her motion to dismiss, raising three grounds: (1) CCC lacks Article III standing; (2) the court should abstain under *Younger*; and (3) Lime is immune from suit in federal court.

You

You are a law clerk for the Hon. Jeremiah “Bullfrog” Williams, U.S. District Court Judge for the District of Campbell. The following three matters are pending before Judge Williams. He has asked you to prepare a memorandum addressing each.

¹ Under controlling Supreme Court precedent, strict scrutiny *unquestionably* applies.

QUESTION ONE: [50 POINTS]

Judge Williams asks you to analyze Lime's renewed motion to dismiss.

Analyze each of the three grounds for dismissal. As a clerk, you are not an advocate, and so should think seriously about the strongest arguments both for and against granting the motion before coming to a conclusion. Judge Williams wants you to analyze all three grounds, even if you think one is sufficient to grant the motion. Director Lime has not made a 12(b)(6) argument on the merits of the CCC's claims, and so you should not address the merits of the First or Fourteenth Amendment claims.

QUESTION TWO: [20 POINTS]

Hill has separately filed a complaint in federal court, which was also assigned to Judge Williams. Hill's complaint asserts that the CWPA violates the First and Fourteenth Amendments to the U.S. Constitution, and seeks declaratory and injunctive relief against Lime. Lime has moved to dismiss this claim as well. Although she raises the same immunity argument, you need not repeat your analysis here. Judge Williams has asked you instead to analyze Lime's sole other basis for dismissal: that the action is barred by the *Rooker-Feldman* doctrine.

Analyze Lime's motion, once more engaging with the strongest arguments either way before coming to a conclusion. In the course of your analysis, if you think any additional facts not provided would be material to the outcome, identify them and explain why.

QUESTION THREE: [30 POINTS]

Simultaneously with her federal district court filing, Hill has petitioned the United States Supreme Court (SCOTUS) for a writ of *certiorari* to review the state court outcome. Hill's petition presents two federal questions: (1) whether the CWPA violates the Free Speech Clause of the First Amendment, and (2) whether the CWPA violates the Free Exercise Clause of the First Amendment (both as applied to Campbell via the Fourteenth Amendment). Her challenges are both facial and as-applied.

Because Hill's district court suit raises overlapping issues, Judge Williams has asked you to take a look at the petition for *cert.* and assess whether SCOTUS has jurisdiction to hear the appeal (he might discretionarily stay the district court action pending the outcome of the petition if so). In particular, he wants to understand whether the Court has jurisdiction under 28 U.S.C. § 1257 and what effect, if any, SCOCAM's decision has on that analysis.

Analyze whether, and to what extent, SCOTUS has jurisdiction to review the federal constitutional questions presented in Hill's petition. Only assess 28 U.S.C. § 1257 and any related threshold issues regarding Supreme Court jurisdiction over appeals from state court judgments—do not address any other issues, including such things as (1) Lime's immunity, or (2) whether Hill can maintain both a SCOTUS appeal and a district court action at the same time.

(end of exam)